

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Thomas Desantos
Judge of the Superior Court
County of Kings
1640 Kings County Drive
Hanford, CA 93230

Re: Ramirez, Jose Robeto
CDC No.: AT1523
Case No.: 13CM8853A
Date of Sentence: March 3, 2014

Dear Honorable Thomas Desantos:

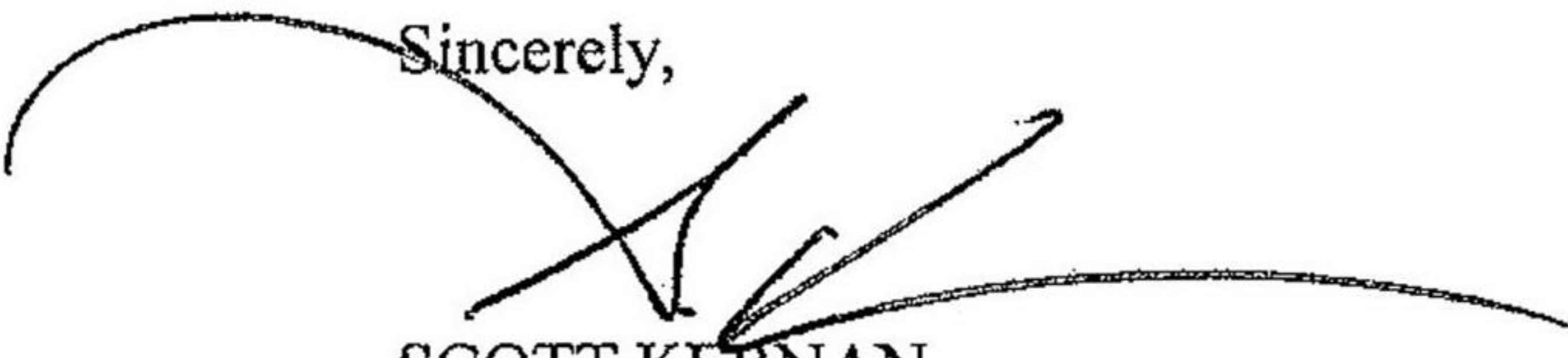
The purpose of this letter is to provide the court with authority to resentence Jose Robeto Ramirez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Ramirez was sentenced in 2014, and was convicted of section 245, subdivision (a)(1), Assault Upon Victim With Deadly Weapon. The trial court sentenced inmate Ramirez on March 3, 2014. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Ramirez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Ramirez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Complaint

cc: Honorable Donna L. Tarter, Kings County Presiding Judge
Kings District Attorney
Public Defender

AT1523

**FELONY ABSTRACT OF JUDGMENT – DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: KINGS					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSE ROBERTO RAMIREZ		DOB: 04-09-96	CASE NUMBER 13CM8853A		
AKA CII NO.: A29425382 BOOKING NO.: 00328031		☐ NOT PRESENT			
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 03-03-14	DEPT. NO. 1	JUDGE THOMAS DESANTOS			
CLERK RACHELLE SERRANO	REPORTER DAWN BICKNER	PROBATION NO. OR PROBATION OFFICER DeANA SWEENEY		☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE LOUIS TORCH, DDA		COUNSEL FOR DEFENDANT LAURENCE MEYER		☒ APPOINTED	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED	
						JURY	COURT	PLEA				YRS	MON
02	PC	245(a)(1)	ASSAULT UPON VICTIM WITH DEADLY WEAPON	2013	01-09-14			X	U	X		4	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL
02	PC 186.22(b)(1)(b)	5 YEARS	PC 12022.7(a)	3 YEARS			8 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☒ to prison per PC 1170(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC290 or ☐ PC 186.11 enhancement
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant was ordered to report to local parole or probation office upon release.
5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):
 Restitution Fine(s): \$ 3,360.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment) \$ 3,360.00 per PC 1202.45 suspended unless parole is revoked
 \$ _____ per PC 1202.44 is now due, probation having been revoked.
 Restitution per PC 1202.4(f): ☒ \$ RESERVED ☐ Amount to be determined to ☒ * victim(s) ☐ Restitution Fund
 * ☒ Victim name(s), if known, and amount breakdown in item 8, below. * ☒ Victim name(s) in probation officer's report.
 Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail - ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
☒ Court Operations Assess \$ 40.00 per PC 1465.8. ☒ Conviction Assess \$ 30.00 per GC 70373. ☐ Other \$ _____ per (specify): _____
6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____
7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/National Origin
8. Other orders (specify): * **BILL MORAN**

9. TOTAL TIME IMPOSED: **12 0**

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows: Suspended portion: _____ Served forthwith: _____
11. ☐ This sentence is to run concurrent with (specify): _____ 12. REGISTRATION REQUIRED: ☒ per (specify code section): **PC 186.30**
13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

14. DATE SENTENCE PRONOUNCED 03-03-14	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS: 232	ACTUAL LOCAL TIME 202	LOCAL CONDUCT CREDITS 30	TIME SERVED IN STATE INSTITUTION
			☐ 2933 ☒ 2933.1 ☐ 4019	DMH [] [] [] CDCR [] [] [] CRC [] [] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☒ Other (specify): **WASCO STATE PRISON UPON TURNING 18 YEARS OF AGE**

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE RACHELLE SERRANO	DATE 03-03-14
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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